

BFSP LLC vs. 8077 HYDE ROAD AGRICULTURAL HOLDINGS, LLC; ET AL.
Case No. CU23-02729

Motion by Receiver for Approval of Final Accounting, Ratification and Discharge of Receiver, Exoneration of Receiver's Bond and Related Relief

TENTATIVE RULING

CRC 3.1184(a) directs a receiver to move for approval of a final account, discharge, and exoneration of bond.

CRC 3.1184(c) requires service of such a motion on the parties and any known creditors.

Notice of the motion or of the stipulation must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by the order or stipulation, whether or not the person or entity is a party to the action or has appeared in it.

The proof of service filed for the motion papers and final accounting signed under penalty of perjury included an 8-page attachment, but no clear evidence is provided to confirm that this is a current and complete list.

Receiver and Receiver's counsel are therefore to appear, and provide explanation and confirmation under penalty of perjury that the 8-page list is a current and accurate list of all known creditors served with the final accounting motion and notice of advanced hearing.

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA, LP.
Case No. CU25-06641

- 1). Motion by Plaintiffs to Compel Further Responses from Defendant LLAM to Requests for Admissions 1, 2, and 5-7;
- 2). Motion by Plaintiffs to Compel Further Responses from Defendant WINNRESIDENTIAL to Requests for Admissions 4 and 5;
- 3). Motion by Plaintiffs to Compel Further Responses from Defendant WINNRESIDENTIAL to Requests for Production 10-13, 15-16, 23-29 and 34;
- 4). Motion by Plaintiffs to Compel Further Responses from Defendant LLAM to Special Interrogatories 6 and 7; and

5). Motion by Plaintiffs to Compel Further Responses from Defendant WINNRESIDENTIAL to Special Interrogatories 14, and 16-23

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

**RUBY EVANS vs. WINDSOR VALLEJO CARE; ET AL.
Case No. FCS055755**

Motion to Tax Costs

TENTATIVE RULING

Defendants' motion to tax costs is granted in part and denied in part.

The court taxes the fees sought for BlackLight Consulting and Shore Law, LLC. These are labeled in Plaintiff's memorandum of costs as expert fees, which is consistent with the description of the work performed (Decl. of Chisholm, ¶¶ 10-11), but fees of experts not ordered by the court are expressly disallowed. (Code Civ. Proc. § 1033.5(b)(1).) Alternatively, the costs can be construed as "[i]nvestigation expenses in preparing the case for trial", which are also expressly disallowed. (Code Civ. Proc. §1033.5(b)(2).)

The court taxes the fees sought for ordinary witnesses Natasha Younger, Chaterine Mithamo, and Vanessa Glenn to the extent they exceed the amounts authorized by Government Code section 68093. Ordinary witness fees are allowed only "pursuant to Section 68093 of the Government Code." (Code Civ. Proc. § 1033.5(a)(7).) A witness who testifies as a percipient witness is entitled to only ordinary witness fees. (*Baker-Hoey v. Lockheed Martin Corp.* (2003) 111 Cal.App.4th 592, 602.) Plaintiff shall file with the court a declaration establishing the number of days and the mileage calculations for these witnesses.

The court taxes the \$11,413.32 in fees claimed to conduct a mock trial. The court finds that these fees were not reasonably necessary for the conduct of the litigation, but were merely convenient or beneficial to its preparation. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes all costs claimed for counsels' travel to attend the trial, including lodging, meals, a remote office, "trial supplies", and WiFi. Given the proximity of counsels' offices in Sacramento and San Francisco, the court finds that these costs were not reasonably necessary for the conduct of the litigation, but were instead merely convenient and beneficial to the conduct of the litigation. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes courier fees claimed for the jury deposit fees, the cellphone, and the lodgment of transcripts. Plaintiff has not presented sufficient evidence of the